

23STCV01717 23STCV01717

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C06%2F26%2F2026

Source SHA-256: 8ee5f6729cc0dd955b9e43b08ec6637b6a4495f358bd72ceffb30ff9454bbe30

Case Number: 23STCV01717 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S. Arian, Dept B

MOTION NAME

Hearing Date: 05/29/26

CASE NO./NAME: 23STCV01717 JOSEPH EGINTON et
al v CITY OF MONROVIA et al

Moving Party: Defendant/Cross-Complainant
City of Monrovia

Responding Party: Plaintiffs

Notice: Sufficient

Ruling: DENY
in its entirety

BACKGROUND

This action concerns the death of pedestrian Denise Eginton ("Decedent"), who died while crossing the street at the intersection of Myrtle Avenue and Foothill Boulevard in the City of Monrovia (the "City"). Decedent was struck by a vehicle owned by Doris Ludwig and driven by Stephen Grollnek. Plaintiffs Joseph Eginton (Decedent's spouse), Zachary Eginton (Decedent's son), and Madison Eginton Eick (Decedent's daughter) (collectively, "Plaintiffs") bring causes of action against the City

for (1) dangerous condition of public property and (2) survival for Decedent's pain and suffering. The City now moves for summary judgment or, in the alternative, summary adjudication. Plaintiffs oppose.

EVIDENTIARY OBJECTIONS

Plaintiffs did not file objections to the evidence the City submitted with the moving papers.

With the reply papers, the City has submitted evidentiary objections to Plaintiffs' evidence. The Court rules on those objections as follows:

.

Declaration
of Plaintiff's expert, Meteorologist Jan Null ("Null"): Evidentiary objections Nos. 1 to 6 are overruled.

.

Declaration
of Plaintiff's expert, Civil Engineer Dale Dunlap ("Dunlap"):

o

Nos.

1-9, 12-19 are overruled. (Maatuk v. Guttman (2009) 173 Cal.App.4th 1191, 1198 ["[A]n expert may rely on any information of the type reasonably relied on by an expert, even if it is hearsay, and from a non-expert".])

o

No.

10 is sustained for lack of foundation and improper legal conclusion. The expert fails to explain what he means and what he is relying on, when he concludes that similar incidents "should have prompted the City to evaluate the safety of the subject intersection and crosswalk."

o

No.

11 is sustained on the ground of speculation regarding pedestrian expectations and experience.

0

No.

20 is sustained for improper legal conclusion. (Nevarrez v. San Marino Skilled Nursing & Wellness Centre, LLC (2013) 221 Cal.App.4th 102, 122 [“an expert may not testify about issues of law or draw legal conclusions”].)

.

Declaration

of Plaintiff’s expert, Psychologist and Certified Professional Ergonomist Ilene Zackowitz, Ph.D., CPE (“Dr. Zackowitz”):

0

Nos.

1, 2, 3, 6-11, 13-14, and 16 are overruled.

0

No.

4 is sustained for improper legal conclusion as to the following statement:

“Thus, the City’s own expert conceded that the visual conditions at this intersection during morning hours were foreseeable, not unexpected.” The objection is otherwise overruled.

0

No.

5 is sustained for improper legal conclusion as to the following statement:

“These prior incidents placed the City on direct notice of the foreseeable and recurring danger this intersection presented to pedestrians during morning hours.” The objection is otherwise overruled.

0

Nos.

12 and 24-27 are sustained on the grounds of speculation and improper legal conclusions.

The City has submitted with its Reply a

supplemental declaration of its expert, Civil Engineer Rock Miller, P.E.

(“Miller”). (Declaration of David Ferrante-Alan, filed May 18, 2026

(“Ferrante-Alan Suppl. Decl.”), Exh. 9 – a copy of the declaration.)

The Court sustains Plaintiffs' objection

to that declaration. (Plaintiffs' Evidentiary Objections to New Declaration of Defense Expert Rock Miller, P.E., filed May 22, 2026, p. 2:5-7 [arguing that the supplemental declaration advances new and different opinions on the issue of the visibility of Decedent before the collision].)

REQUEST FOR JUDICIAL NOTICE

The City

requests judicial notice of: "1. The State of California-Transportation Agency, Department of California Highway Patrol collision data (commonly known as SWITRS) on or near Foothill Boulevard and Myrtle Avenue in the City of Monrovia, along with transmittal letter from the California Highway Patrol; [¶] 2. The Los Angeles County Department of Public Works Traffic Signal Plan: Foothill Boulevard – Myrtle Avenue signed by the City of Monrovia on August 25, 1985. [¶] 3. Foothill Boulevard Project ID Number TSM0010193 plans signed by the City of Monrovia on November 20, 2014." The documents are attached to the City's Compendium of Evidence ("CCOE") as Exhibits 4, 2, and 3, respectively. The request for judicial notice is granted. (Evid. Code, § 452, subds. (b), (c).)

LEGAL STANDARD

On

a motion for summary judgment or adjudication, "the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)

A

defendant "has met [its] burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

"Once

the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of

material fact exists, but instead, "shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action." (Ibid.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

UNDISPUTED

MATERIAL FACTS

"On November 13, 2021, at approximately 8:00 a.m., 79-year-old driver Stephen Grollnek hit 68-year-old pedestrian Denise Eginton at the intersection of Myrtle Ave. and Foothill Blvd." (Plaintiff's separate statement in response to the City's separate statement of undisputed material facts ("UMF") No. 29.)

"Prior to the incident, Mr. Grollnek was ... on Foothill Blvd., waiting in the left turn lane for the light to turn green so he could turn left onto ... Myrtle." (UMF No. 32.) "The intersection is controlled by traffic lights in all four directions. All signals at the intersection were working order per the Arcadia Police report." (UMF No. 3.) Decedent "was using the marked crosswalk on the east side of the intersection, proceeding north across myrtle." (UMF No. 33.) "When the light turned green, Mr. Grollnek proceeded to make a left turn onto Myrtle." (UMF No. 34.)

"Mr. Grollnek admits the sun was in his eyes prior to impact and never saw Ms. Eginton prior to striking her." (UMF No. 35.) "At the time of the collision, the sun was 36 degrees to the right (south) of the east and 16.6 degrees above the horizon. The sun was directly in the face of Mr. Grollnek as he was making his turn and would cast a shadow over the southerly portion of the roadway." (UMF No. 22.) "According to Mr. Grollnek, he put on sunglasses during the time he was making this turn." (UMF No. 37.) "Mr. Grollnek heard a noise and stopped to see if he hit anything." (UMF No. 38.) "Upon walking further around his vehicle, he saw Ms. Eginton under the vehicle." (UMF No. 39.) "Decedent had been struck when she was about halfway into the crosswalk." (UMF No. 40.)

"Ms. Eginton died as a result of the injuries she sustained from this collision." (UMF No. 41.)

DISCUSSION

The City moves for summary judgment, arguing that it is entitled to the complete defense of design immunity under Government Code section 830.6 regardless of whether the intersection had a dangerous condition. In the alternative, the City moves for summary adjudication of several duties and affirmative defenses.

A.

Design Immunity

“Under the Government Claims Act, a tort action cannot be maintained against a government entity unless the claim is premised on a statute providing for that liability. (See [Gov. Code] § 815.)” (*Tansavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 652 (*Tansavatdi*)).^[1]

Government Code^[2]

“section 835 ... “is the principal provision addressing the circumstances under which the government may be held liable for maintaining a dangerous condition of public property.” [Citation.]” (*Tansavatdi*, *supra*, 14 Cal.5th at pp. 652–653.)

“[S]ection 835 expressly authorizes two different forms of dangerous conditions liability: [1] an act or omission by a government actor that created the dangerous condition (§ 835, subd. (a)); or ... [2] failure ‘to protect against’ dangerous conditions of which the entity had notice (*id.*, subd. (b)).” (*Tansavatdi*, *supra*, 14 Cal.5th at p. 653 [*italics removed, underlining added*]). The term “[p]rotected against’ includes repairing, remedying or correcting a dangerous condition, providing safeguards against a dangerous condition, or warning of a dangerous condition.” (Gov. Code, § 830, subd. (b).)

“Section 830.6, commonly referred to as ‘design immunity,’ precludes liability for any injury caused by ‘the plan or design of ..., or an improvement to, public property.’ (§ 830.6.)” (*Tansavatdi*, *supra*, 14 Cal.5th at p. 653.)

However,

“section 830.6 ... does not necessarily immunize liability for failing to warn of [or repair, remedy, correct, or provide safeguards against] a known dangerous traffic [or roadway] condition under section 835, subdivision (b) (a form of passive negligence).” (Tansavatdi, supra, 14 Cal.5th at p. 660.)

As

discussed below, the City has established that it has design immunity from liability for Plaintiffs’ allegation that the City’s designs of the intersection caused the accident. However, that immunity does not apply to Plaintiffs’ allegation that the City’s failure to protect Decedent against known dangerous conditions of the intersection.

1. Design immunity applies

to the Plaintiffs’ allegation that the City’s design of the roadway caused the accident.

“[D]esign

immunity requires that a public entity establish three elements: ‘(1) a causal relationship between the plan or design and the accident; (2) discretionary approval of the plan or design prior to construction; and (3) substantial evidence supporting the reasonableness of the plan or design.’ [Citation.]

Resolution of the third element—the existence of substantial evidence supporting the reasonableness of the adoption of the plan or design—is a matter for the courts, not the jury, to decide.” (Tansavatdi, supra, 14 Cal.5th at p. 653.)

““Design

immunity is ... often raised on a motion for summary judgment or nonsuit, [thereby] enabling the trial court to find the defense established as a matter of law.’ [Citation.]” (Stufkosky v. California Department of Transportation (2023) 97 Cal.App.5th 492, 496 (Stufkosky).)

However,

““‘[t]he normal rules governing a motion for summary judgment, and requiring its denial if any triable issue of fact appears, are not fully applicable [to cases involving design immunity under ... section 830.6].’”” (Stufkosky, supra, 97 Cal.App.5th at pp. 496-497.) “““For example, the defendant is not required to prove to the court that the design or plan was in fact a reasonable one. Instead, the defendant is merely required to adduce any ‘substantial evidence’ that a reasonable public employee or legislative body

could have approved the plan or design used under [section] 830.6.”” (Stufkosky, supra, 97 Cal.App.5th at p. 497.) “”“Thus, when the defendant files a motion for summary judgment, the existence of a possible conflict of evidence, as shown by the proof submitted on the motion, will not create a triable issue on this aspect of the defense that can defeat a summary judgment” [Citation.]” (Ibid.)

a.

First Element: Causal Relationship Between the Plan or Design and the Accident

In

Stufkosky, the California Court of Appeal held that, to satisfy the first element of design immunity on summary judgment, it was not necessary for the defendant (California Department of Transportation (“Caltrans”)) to prove that it expressly considered design alternatives that would have prevented an automobile accident on a state highway (SR-154) “because the complaint clearly allege[d] the required causal connection.” (Stufkosky, supra, 97 Cal.App.5th at p. 497 [citing and quoting *Alvis v. County of Ventura* (2009) 178 Cal.App.4th 536, 550, which stated that a public entity “may rely on the allegations of the complaint to establish causation”].)

“Appellants’

theory of the case, in sum, [was] that Caltrans designed SR-154 without certain specific features they contend[ed] would have made the highway safer.” (Stufkosky, supra, 97 Cal.App.5th at p. 497 [underlining added].) Specifically, the complaint alleged that “Caltrans was ‘well aware of deer entering the roadway in the area of the accident’ yet failed to safeguard motorists or warn them adequately of the danger in violation of section 835. They also allege[d] [that] Caltrans ‘owned, planned, programmed, prioritized, designed, constructed, contracted, maintained, repaired, controlled, managed, monitored, replaced, signed, signaled, lighted, striped, painted, and/or entered into contracts, leases and easements in regards to the Subject Roadway.’” (Stufkosky, supra, 97 Cal.App.5th at p. 497.)

Based

on Stufkosky, the Court finds that the City has met its burden of proving the first element of its design immunity defense by pointing to the following allegations in the Complaint. “In Paragraph 5 of Plaintiffs’ Complaint, Plaintiffs allege: that ‘as a result of the design ... of the Roadway, that Mr.

Grollnek had difficulty seeking Decedent before he struck her with his car ... due in substantial part, the dangerous condition of the subject Roadway” (Motion, p. 18:3-6.) “[I]n Paragraph 16 of Plaintiffs’ Complaint, Plaintiffs allege the City of Monrovia ‘... owned, operated, designed, planned, engineered, maintained, inspected, repaired, and controlled the crosswalks, streets ...’ including the subject Roadway.” (Motion, p. 18:6-9.) Lastly, “[i]n paragraph 23 of the Complaint, Plaintiffs allege, ‘... that the CITY’S failure to have dedicated traffic signals at the intersection also constituted a defectively designed ...’ intersection.” (Motion, p. 18:7-11.) As the City argues, “[b]y alleging that it was the design of the roadway which caused the Decedent’s injuries Plaintiffs have admitted there is a causal relationship between the design and the accident.” (Motion, p. 18:9-11.) Plaintiffs contend that there was no causal relationship because the City never considered or approved the intersection’s dangerous features (e.g., visual obstructions such as sun glare and faded crosswalks). (Opposition, p. 15:5-14.) That argument is irrelevant for the first element. Under *Stufkosky*, it is enough that Plaintiffs’ own Complaint alleges a causal relationship between the City’s design and the accident.

b.

Second Element: Discretionary Approval

“The ‘discretionary approval’ element of design immunity has two parts: (1) the design must have ‘been approved in advance ... by the legislative body of the public entity or by some other body or employee exercising discretionary authority to give such approval’; or (2) the design must have been ‘prepared in conformity with standards previously so approved.’ ([Gov. Code] § 830.6.)” (*Stufkosky*, supra, 97 Cal.App.5th at pp. 497-498.) “Advance approval ‘simply means approval in advance of construction by the legislative body or officer exercising discretionary authority.’ [Citation.]” (*Id.* at p. 498.)

“‘A detailed plan, drawn up by a competent engineering firm, and approved by a city engineer in the exercise of his or her discretionary authority, is persuasive evidence of the element of prior approval.’ [Citation.]” (*Stufkosky*, supra, 97 Cal.App.5th at p. 498.) “[T]he law’s purpose is to avoid the dangers involved in permitting reexamination and second-guessing of governmental design decisions in the context of a trial.’ [Citation.]” (*Ibid.*)

Here,

the following facts are undisputed. “In

1985, a plan entitled Los Angeles County Department of Public Works Traffic Signal Plan Foothill Blvd. – Myrtle Ave. was submitted by James F. Erpenbach, Civil Engineer #19493 and signed approved by John C. Behe the Deputy Director on behalf of T.A. Tidemanson, Director of Public Works on July 25, 1985. This plan shows the modification of the traffic signal to replace poles to provide longer mast arms and to upgrade indications to larger sizes on all corners of the intersection. The plans do not reflect the provision of left turn arrows for any approach. The plan also indicates an approval signed by the City of Monrovia on August 25, 1985.” (UMF No. 4.)[3]

“In 2014, a set of plans was

prepared showing the modification of the intersection traffic signal to upgrade vehicle and pedestrian signal indications to larger sizes, shift the location of traffic striping on the west leg, upgrade vehicle detection, and other minor adjustments. The plans do not show any modification to provide left turn phasing on any intersection approach. These plans were signed and stamped by Phat Duong, Registered Civil Engineer No. 54086, on October 30, 2014 and signed Approved on Behalf of Gail Farber, Director of Public Works by Dean Lehman on November 4, 2014. Sheet 13 of 15 is stamped by Benjamin K. Chan, Registered Civil Engineer # 37957 on September 29, 2014 and is signed approved by the City of Monrovia on November 20, 2014.” (UMF No. 5.)

Plaintiffs

argue that the City’s designs and plans failed to consider the visual obstructions (e.g., sun glare) that existed and created a dangerous condition at the intersection. (Opposition, p. 15:5-20.)

The

plaintiff in *Rodriguez v. Department of Transportation* (2018) 21

Cal.App.5th 947, made a similar argument, and the appellate court rejected it as irrelevant for the discretionary approval element of the design immunity defense. (Id. at p. 956; see *ibid.* [“Rodriguez contends Caltrans cannot establish discretionary approval because the purported decision-maker never considered the particular feature or design element at issue, namely whether to install rumble strips. He asserts that if there was never a decision made concerning rumble strips, the quality of the deliberative process cannot be assessed”]; id. at p. 958 [“[U]nder the language of section 830.6, all that is required to establish the discretionary approval element is evidence that an employee with discretionary authority approved the plan or

design. Here, Caltrans presented such evidence. That the project engineer also stated he did not consider the use of rumble strips is irrelevant to the discretionary approval element. It is relevant, however, to the reasonableness [i.e., the third] element [of the design immunity defense], as it is at that stage the court considers whether it is reasonable that an employee, in approving a design without considering a particular design feature, adopted a design that 'a reasonable ... employee could have approved.' [Citations]"(.)

Therefore,
the Court finds that the City has satisfied the second element of design immunity with regard to the allegation that its designs caused the accident.

c.

Third Element: Whether Substantial Evidence Supports
the Reasonableness of the Design

"The
third element of design immunity exists 'if the trial or appellate court determines that there is any substantial evidence upon the basis of which (a) a reasonable public employee could have adopted the plan or design or the standards therefor or (b) a reasonable legislative body or other body or employee could have approved the plan or design or the standards therefor.' ([Gov. Code] § 830.6.)" (Stufkosky, supra, 97 Cal.App.5th at p. 499.)

""Any
substantial evidence" to establish this third element of the immunity may consist of the following: [1] Discretionary approval of the design plans themselves [citation]; [2] the expert opinion of a civil engineer as to the reasonableness of the design [citation]; or [3] evidence the design or plan complies with prevailing professional standards [citation].' [Citation.] 'By deciding on a "reasonableness" standard, the Legislature intended that government officials be given extensive leeway in their decisions concerning public property.' [Citation.]" (Stufkosky, supra, 97 Cal.App.5th at p. 499.)

""Generally,
a civil engineer's opinion regarding reasonableness is substantial evidence sufficient to satisfy this element. [Citation.] Approval of the plan by

competent professionals can, in and of itself, constitute substantial evidence of reasonableness. [Citation.] [Citation.] ‘We are not concerned with whether the evidence of reasonableness is undisputed; the statute provides immunity when there is substantial evidence of reasonableness, even if contradicted. [Citations.] [Citation.] ‘That a plaintiff’s expert may disagree does not create a triable issue of fact.’ [Citation.]” (Stufkosky, supra, 97 Cal.App.5th at p. 500 [underlining added].)

Here,
the City’s expert, Traffic and Civil Engineer Miller, has submitted a declaration attesting to the reasonableness of the design. (CCOE, Miller Decl., ¶¶ 10-12 [testifying that he reviewed the City’s plans for Myrtle Avenue and Foothill Boulevard, and that it was his “opinion ... [that] the traffic signals and other improvements at the intersection were constructed based upon and consistent with these plans that were prepared by registered engineers with authority to approve plans on behalf of the City of Monrovia].) Under the above case law, Miller’s testimony is sufficient to establish the reasonableness of the design of the intersection regardless of Plaintiffs’ expert’s disagreement with Miller’s opinion.

For
the reasons set forth above, the Court finds the City has design immunity as to Plaintiffs’ allegation that the City’s design of the intersection caused the accident.

2. However, design
immunity does not apply to Plaintiffs’ allegations that the City failed to “protect against” the known dangerous conditions at the intersection.

The California Supreme Court has held
that design immunity does not apply to a public entity’s failure to “protect against” dangerous conditions of which it had notice (Tansavatdi, supra, 14 Cal.5th at p. 653), and, as stated above, the term “protect against” includes repairing, remedying, or correcting a dangerous condition, as well as providing safeguards against the dangerous condition (Gov. Code, § 830, subd. (b)).

Here, Plaintiffs allege that “[d]ue to
the wrongful, tortious, and negligent ... maintenance of the ROADWAY and due to the failure to adequately warn of the danger posed by the ROADWAY by defendants

CITY OF MONROVIA, and DOES 1 to 10, inclusive, and each of them, Decedent was mortally injured when she was struck by the 2020 Kia Sportage ... operated by [Grollnek]" (Compl., ¶17.) Design immunity does not cover those allegations.

Therefore, the City's request for summary judgment on the ground of design immunity is denied.

B.

Dangerous Condition

The

City moves for summary adjudication, arguing that even if there was no design immunity, the City is not liable to Plaintiffs because: (1) there was no dangerous condition for the City to warn of; (2) the City had no notice of a dangerous condition; (3) even if the roadway was in a dangerous condition, the condition did not qualify as a concealed trap; (4) the City's warnings at the subject intersection were sufficient; and (5) the absence of additional warnings at the intersection were sufficient. (Motion, p. 2:9-18.) "Further, the City alternatively moves for summary adjudication on the grounds that ..." (6) "[t]here was no dangerous condition of public property, and even if there was, the undisputed evidence is that defendant Grollnek was not using the property with due care." (Motion, p. 2:19-24.)

1.

Triable issues of material fact exist regarding whether there was a dangerous condition at the intersection.

"[A] public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that [1] the property was in a dangerous condition at the time of the injury, [2] ... the injury was proximately caused by the dangerous condition, [3] ... the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and [4] either: [¶] (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.' (Gov. Code, § 835.)" (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1133 (Zelig).)

““The [Government Claims Act] defines a
“[d]angerous condition” as ‘a condition of property that creates a
substantial (as distinguished from a minor, trivial or insignificant) risk of
injury when such property or adjacent property is used with due care in a
manner in which it is reasonably foreseeable that it will be used.’ (§ 830.)
Public property is in a dangerous condition within the meaning of section 835
if it ‘is physically damaged, deteriorated, or defective in such a way as to
foreseeably endanger those using the property itself.’” [Citation.]” (Pagan
v. City of San Rafael (2026) 119 Cal.App.5th 853, 863 (Pagan).)

“A dangerous condition of public
property can come in several forms and may be based on an ‘amalgam’ of
factors.” [Citation.]” (Pagan, supra, 119 Cal.App.5th at p.
863.)

“The existence of a dangerous condition
ordinarily is a question of fact” (Zelig, supra, 27 Cal.4th at
p. 1133.)

However, ““[a] condition is not
dangerous [as a matter of law] ‘if the trial or appellate court, viewing the
evidence most favorably to the plaintiff, determines ... that the risk created by
the condition was of such a minor, trivial, or insignificant nature in view of
the surrounding circumstances that no reasonable person would conclude that the
condition created a substantial risk of injury when such property or adjacent
property was used with due care in a manner in which it was reasonably
foreseeable that it would be used.’ (§ 830.2.)” [Citation.]” [Citations.]’
[Citation.]” (Pagan, supra, 119 Cal.App.5th at p. 863.)

“To
allege a claim for dangerous condition, plaintiff must ‘specify in what manner
the condition constituted a dangerous condition.’ [Citations.]” (Pagan, supra,
119 Cal.App.5th at p. 864.) “A summary judgment motion must show that the
‘material facts’ are undisputed. (Code Civ. Proc., § 437c, subd. (b)(1).) Thus,
the pleadings serve as the outer measure of materiality in a summary judgment
motion, and the motion may not be granted or denied on issues not raised by the
pleadings.” (Id. at p. 865.)

Here, the Complaint alleges “that the

difficulty that Mr. Grollnek had seeing the Decedent before he struck her was due, in substantial part, to the dangerous condition of the subject Roadway, sight line obstructions, inadequate lighting, inadequate traffic signals, inadequate striping, inadequate signage, the failure to use in-roadway flashing lights, the failure to use lighted beacons warning of the pedestrian crossing/crosswalk, the failure to have the crosswalk painted on both sides of the intersection, the failure to follow the recommendations of the independent traffic study of the area, the failure to erect stop signs and electronic traffic signals, and for other reasons currently unknown to the Plaintiffs.” (Compl., ¶ 5.)

With regard to the allegations of installing traffic signals, signage, flashing lights, lighted beacons, erect stop signs, and traffic signals, “the statutory scheme precludes a plaintiff from imposing liability on a public entity for creating a dangerous condition merely because it did not install the described traffic control devices.” [Citation.] In short, “[t]he lack of a traffic signal at the intersection does not constitute proof of a dangerous condition.” (Mixon v. Pacific Gas & Electric Co. (2012) 207 Cal.App.4th 124, 135 (Mixon); see also Paz v. State of California (2000) 22 Cal.4th 550, 561 [“As our cases and statutes establish, cities generally have no affirmative duty to install traffic control signals”]; see also Mittenhuber v. City of Redondo Beach (1983) 142 Cal.App.3d 1, 6 [“A city is under no affirmative duty to erect stop signs at such an intersection. Government Code section 830.4 provides: ‘A condition is not a dangerous condition within the meaning of this chapter merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs, as described by the Vehicle Code, or distinctive roadway markings as described in Section 21460 of the Vehicle Code.’”] Additionally, Government Code section 830.8 provides in pertinent part as follows: ‘Neither a public entity nor a public employee is liable under this chapter for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code’”]; *ibid.* [“To hold that the city had the affirmative duty to erect stop signs at the intersection in question would unduly extend the scope of the Public Liability Law and go far toward establishing the rule that a municipality is an insurer”].)

Nevertheless, “a public entity may be liable where a dangerous condition ‘exists for reasons other than or in addition to the “mere[]” failure to provide such controls or

markings.’ [Citation.] [For example,] [s]ight restrictions caused by metal pillars in the street and an overhead freeway may combine with the absence of regulatory traffic devices to create a dangerous condition” (Mixon, *supra*, 207 Cal.App.4th at p. 135; see also *De La Rosa v. City of San Bernardino* (1971) 16 Cal.App.3d 739, 746 [“[A]lthough a public entity is not liable for failure to install traffic signs or signals (Govt. Code, ss 830.4, 830.8), when it undertakes to do so and invites public reliance upon them, it may be held liable for creating a dangerous condition in so doing”]; e.g., *id.* at p. 745-746 [“There was evidence that the walnut tree and shrubbery on the west side of Pepper impaired the visibility of the stop sign to such an extent that it was barely visible during the day and could not be seen by a southbound motorist at night; there was evidence of numerous accidents at the intersection involving vehicles travelling south on Pepper; there was evidence from which it could be reasonably inferred that the ‘Stop Ahead’ legend on the pavement was faded. Although the evidence indicated that the walnut tree and shrubbery were growing on adjacent property, it could reasonably be inferred from the evidence that their proximity to the highway and intersection exposed motorists to a substantial risk of harm”].)

Here,

Plaintiffs allege that the dangerous conditions also included: (a) sight line obstructions; (b) inadequate lighting; (c) inadequate striping; and (d) the failure to have the crosswalk painted on both sides of the intersection. (Compl., ¶ 5.)

The Court finds that the City has met its initial burden of showing that the intersection was not in a dangerous condition through the following evidence. “According to the California Highway Patrol Statewide Integrated Traffic Records System (SWITRS) annual reports, for a period of ten years, 2013 through 2022, 29 collisions have been coded to the subject intersection. During this ten-year timeframe, other than the subject incident, only one other collision involved a vehicle making a southbound left turn, which occurred on January 14, 2013. This collision was neither reported severe or fatal.” (UMF No. 16.)[4] The lack of other incidents involving a vehicle making a southbound left turn supports the City’s claim that there was no dangerous condition.

The

City has also met its initial burden of proving that Grollnek was not using due care when approaching the intersection. During his deposition, Grollnek testified that although the sun blinded his eyes, he did not slow down his vehicle. (CCOE, Exh. 6 (Grollnek Depo.), p. 39 [“Did you do anything to change

the way in which you were driving either by speed or otherwise in those last 25 to 30 feet? ¶ A. No”].)

Therefore, the burden shifts to Plaintiffs to show triable issues of material fact as to those issues.

The Court finds that Plaintiffs have met their burden of showing that triable issues of material fact exist regarding whether the sun’s location at the intersection is so blinding in the morning that, when combined with the absence of additional traffic devices (e.g., a left turn arrow), a dangerous condition forms for pedestrians like Decedent. Plaintiffs have submitted (and the City has not filed evidentiary objections to) the deposition transcript of a resident of the City, Stephen Bray, who confirmed that his experience matched a social media post’s claim that the glare from the sun at the intersection is “absolutely blinding” (Plaintiffs’ Index of Exhibits (“PIE”), Ex. 8, p. 25:14-19 [discussing a Facebook post by a person called Kathee Bautista]; Ex. 8, p. 8-0001 [showing the post by Kathee Hennigan Bautista]; p. 8-0026 [presenting another Facebook post by a person named Ruth Anne Galloway claiming that the sun is blinding].) Plaintiffs have also submitted the depositions transcripts of Gibson Transporting Consulting’s (“GTC”) Patrick Gibson (a licensed traffic engineer) and his son Richard Gibson. GTC served as the City’s contract traffic engineers at the time of the accident. (Plaintiffs’ Index of Exhibits (“PIE”), Exh. 15 – Deposition of Richard Gibson, p. 9:16-20.) Following the accident, the City asked GTC “to do a thorough field investigation of the intersection to determine if any improvements were warranted based on the accident itself.” (PIE, Exh. 14 – Deposition of Patrick Gibson, at pp. 9:21-10:3.) GTC “determined that that location could have had in the morning sun in that side of the world that would be shining in a driver’s face,” and that the sun could “impact the driver’s ability to see at certain times” (Id. p. 16:22-25.) Defense counsel asked Patrick Gibson, “as a traffic engineer, if the goal was to – and in spite of that, that there’s a sun glare that impacts the driver’s ability to see at certain times, what are the potential fixes to protect pedestrians and any conflict with pedestrians in a crosswalk?” (Id. at p. 17:3:7 [the Court overrules the deposition objection that question].) Patrick Gibson answered: “Well, the only real fix would be a north-south left-turn arrow, which would mean that by law, a vehicle and a pedestrian couldn’t be crossing that crosswalk at the same time.” (Id. at p. 17:11-14.) The Court agrees with Plaintiffs that evidence is sufficient to raise a triable issue of material fact regarding whether the sun’s glare at the time the incident took place, combined with the absence of other

traffic devices (e.g., a left-turn arrow), created a dangerous condition for pedestrians like Decedent.

Plaintiffs have also met their burden of

showing that triable issues of material fact exist regarding whether Grollnek was approaching the intersection with due care. During his deposition, Grollnek testified that he was only traveling five miles per hour before his vehicle struck Decedent. (Opposition, p. 24, fn. 10; see also the City's copy of the deposition transcript (CCOE, Exh.

6 (Grollnek Depo.), p. 39:2-5 ["Q. Did you - - in response to, you know, not

being able to see anything, did you slow your vehicle at all? ¶ A. I was only going five miles at all times"].) A reasonable fact finder

could find that speed reasonable.

In its reply, the City argues that

Plaintiffs have failed to show that Grollnek exercised due care for the following reasons. In *Thimon v. City of Newark* (2020) 44 Cal.App.5th

745, the plaintiff also alleged similar to Plaintiffs that "due to forced use of an unprotected, uncontrolled crosswalk particularly at a time of year and time of day when glare from the morning sun obscures visibility of pedestrians."

(Reply, p. 9:15-21 [italics removed].) The Court of Appeal held that it could

find a lack of due care as a matter of law because, among other things,

"although the sun impeded [the driver's] view, he was aware of the glare well before he approached the intersection" (Reply, p. 10:2-3, citing *Thimon*, supra, 44 Cal.App.5th at p. 756.)

Unlike in *Thimon*, however, it is

unclear whether Grollnek was aware of the glare before he approached the intersection. On one hand, he suggested that the sun was a surprise. (See CCOE, Exh. 6 (Grollnek Depo.), p.

37:4-10 ["Q. Do you know if there was some obstruction to your ability to see the pedestrian before striking her? ¶ A. The sun. The

sun was - - it came on - - it wasn't there when I made the turn. It wasn't there ten feet. When I got to 10 or 15 feet it was there. I couldn't see

anything"].) On the other hand, he testified that the sun "was always an issue" to a deposition question asking him "how long before [he] heard the sound of striking the pedestrian did the sun become an issue, either by time or

distance?" (Id. at p. 37:11-15.) Therefore, the Court finds the City's *Thimon* argument unpersuasive.

The

City also insists that “liability lies under ... section 835 only when a feature of the public property has ‘increased or intensified’ the danger to users from third party conduct. [Citation.]’ [Citation.]” (Reply, p. 10:26-28 [emphasis removed], quoting *Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347.) In addition, that “[a]n intersection on a heavily travelled thoroughfare is not generally made dangerous by the type of existence of crosswalk markings, the lighting conditions, or the lack of traffic signals or other devices.” (Reply, p. 11:2-4.)

However,

as stated above, case law also states that “a public entity may be liable where a dangerous condition ‘exists for reasons other than or in addition to the “mere[]” failure to provide such controls or markings.’ [Citation.]” (*Mixon*, supra, 207 Cal.App.4th at p. 135.)

Here, the

Court has found that Plaintiffs have met their burden of showing that triable issues of material fact exist regarding whether the intensity of the sun’s glare plus the absence of a left-turn arrow traffic signal created a dangerous condition. On this motion, the Court cannot make that determination as a matter of law given the parties’ conflicting evidence.

For

those reasons, the Court denies the City’s request for summary adjudication on the ground that there was no dangerous condition.

2.

Triable issues of material fact exist regarding whether the City had notice of the alleged dangerous conditions.

“A public

entity can be liable for a dangerous condition not of its own making if the entity had ‘actual or constructive notice ... a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.’ (§ 835, subd. (b).)” (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 836.)

“To establish actual notice, “[t]here

must be some evidence that the employees had knowledge of the particular

dangerous condition in question”; “it is not enough to show that the [public entity’s] employees had a general knowledge” that the condition can sometimes occur.’ [Citation.]” (Kabat v. Department of Transportation (2024) 107 Cal.App.5th 651, 665 (Kabat).)

“To establish constructive notice, the plaintiff must prove ‘the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.’ (§ 835.2, subd. (b).)” (Kabat, supra, 107 Cal.App.5th at p. 665.)

Here, the Court finds that, given SWITRS statistics the City has provided showing (i.e., before the accident, there was only one incident on January 14, 2013, that involved a vehicle making a southbound left turn), the City has met its initial burden of showing that it did not have actual or constructive notice of the alleged dangerous condition.

“However the issue of notice is also for the determination of the jury except in those cases wherein the defect is so trivial that reasonable minds could not differ as to whether the condition was such as to charge the municipality with constructive notice of its existence and a consequent duty to repair.” (Johnson v. City of San Leandro (1960) 179 Cal.App.2d 794, 800.)

Here, the Court does not find that the alleged dangerous condition(s) of the intersection were so trivial that reasonable minds could not differ when Plaintiffs have produced the following evidence. “[F]our (4) separate reported injury incidents involving vehicles striking pedestrians at the same intersection due to visibility issues in a span of only 2 years, including: an accident on September 14, 2012, at 7:07 a.m. when a vehicle traveling eastbound on Foothill Boulevard at Myrtle struck a bicyclist because ‘his vision was obscured by the direct sunlight causing him to collide into the [bicyclist]’ [citing PIE, Exh. 3 – Monrovia Police Reports, pp] 3-0033, 3-3034], an accident on January 14, 2013 at 9:27 a.m. when a vehicle attempting to turn left from southbound Myrtle onto eastbound Foothill struck a pedestrian who was pushing her wheelchair within the east crosswalk because ‘her vision was obscured due to the sun light [and that] she did not see any pedestrians in the crosswalk prior to making a left turn’ [[id. at pp.] 3-0035, 3-3036]; an accident on December 9, 2013, at 8:56 a.m. in which a vehicle attempting to turn left from southbound Myrtle onto eastbound

Foothill struck a young mother pushing her 4-year child in a stroller in the east crosswalk and told the Monrovia Police Department that she 'did not see anyone in the crosswalk' [[id. at pp.] 3-0041, 3-0042] [1-0976] and an accident on October 28, 2014 at 7:28 a.m. in which a pedestrian was struck in the east crosswalk of the subject intersection by a vehicle traveling eastbound on Foothill Boulevard when the involved vehicle driver 'did not see [the pedestrian] until her vehicle collided into her' [[id. at pp.] 3-0047, 3-0048]." (Opposition, fn. 2, citing Monrovia Police Report's attached as Exhibit 3 in Plaintiffs' Index of Evidence (PIE).) Although those accidents happened years ago, a fact finder may find that the City had constructive notice that lack of visibility (e.g., due to sun glare) at the intersection coupled with the absence of other traffic devices (e.g., a left turn arrow) presented dangerous conditions to pedestrians.

For those reasons, the Court denies the City's request for summary adjudication as to the issue of notice.

3.

Triable issues of material fact exist regarding whether the alleged dangerous condition(s) constituted a "concealed trap."

Apart from design immunity, the Government Claims Act, specifically Section 830.8, "provides a second form of immunity, precluding public entity liability 'for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code.' (§ 830.8.)" (Tansavatdi, supra, 14 Cal.5th at p. 653.)

Section

830.8, however, sets forth a limitation, commonly referred to as the "concealed trap exception," to such immunity, stating: "Nothing in this section exonerates a public entity ... from liability for injury ... caused by such failure if a signal, sign, marking or device ... was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care." (Tansavatdi, supra, 14 Cal.5th at p. 653.)

Here,

the City argues that "there was nothing concealed about the condition of the subject roadway," and that "Mr. Grollnek testified that he was very familiar

with the subject intersection.” (Motion, p. 28:1, 28:8.)

However,
as discussed earlier, Grollnek’s provided inconsistent responses regarding whether he expected or did not expect the sun’s glare.

In
addition, the City’s traffic engineer testified that “the only real fix [for sun glare impacting drivers at the intersection] would be a north-south left-turn arrow, which would mean that by law, a vehicle and a pedestrian couldn’t be crossing that crosswalk at the same time.” (PIE, Exh. 14 – Deposition of Patrick Gibson, p. 17:11-14.)

Therefore, the Court finds that triable
issues of material fact exist as to whether Decedent’s accident was caused by the City’s failure to install a left-turn signal given the intensity of the sun’s glare.

4.
The City is not entitled to summary adjudication
based on its failure-to-warn arguments.

The City cites Section 830.8 and argues
that the City’s warnings at the intersection were “sufficient to apprise a motorist to yield to pedestrians crossing the street.” (Motion, p. 31:10-12.)

The City also argues that “Plaintiffs simply
have not, and cannot, show that the absence of a warning was an independent, separate concurring cause of the accident. Here, Mr. Grollnek admitted that he had been driving through this intersection for 33 years, made this very same left turn every Saturday for the last five years, and in fact estimated making the left turn approximately 45 – 50 times each month. He was obviously well aware that the sun would be blinding while making the turn during morning hours and that pedestrians could possibly be crossing the street.” (Motion, p. 32:3-9.)

However,
as stated above, the concealed trap exception states that Section 830.8 immunity does not “‘exonerate[] a public entity ... from liability for injury ... caused by such failure if a ... device ... was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which

would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care.” (Tansavatdi, supra, 14 Cal.5th at p. 653.)

Here,
the Court has found that triable issues of material fact exist regarding whether Grollnek approached the intersection with due care.

In
addition, the City’s traffic engineer testified that the only “real fix” to dangers posed by a sun impacting a driver’s visibility and placing pedestrians in danger was installing a “north-south left-turn arrow.”

Therefore,
triable issues of material fact exist regarding whether a traffic device was necessary to warn of a dangerous condition that endangered the safe movement of traffic at the intersection.

Furthermore,
as stated previously, design immunity “does not immunize from liability caused by negligence independent of design, even though the independent negligence is only a concurring, proximate cause of the accident.” [Citation.]” (Tansavatdi, supra, 14 Cal.5th at pp. 655-656.) pp. 655-656.) Here, the Court already discussed design immunity above. The Court also finds that based on the parties’ papers and evidence, triable issues of material fact exist regarding whether (1) the City had notice of the sun’s dangerous impact on drivers’ visibility of pedestrians, and (2) whether the City acted negligently when it failed to install a traffic device that would have prevented pedestrians and motor vehicles to come into contact with one another at the intersection at the time the sun posed such danger.

For
those reasons, the Court denies the City’s request for summary adjudication based on its failure-to-warn arguments.

CONCLUSION AND ORDER

The City’s Motion for Summary Judgment
or, in the Alternative, Summary Adjudication is denied in its entirety.

Plaintiffs shall provide notice of this order.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court

[1] Tansavatdi is the most recent California Supreme Court case addressing design immunity.

[2] Unless otherwise noted, all further statutory citations are to the Government Code.

[3] UMF No. 4 and some other UMFs (e.g., Nos. 5, 9, 10, 13, 14) are not disputed; Plaintiffs only argue that the City's design plans did not evaluate or consider other factors, and/or the City should have installed certain safety features. Case law holds that "[r]esponses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists." (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 875.) Therefore, the Court finds those UMFs undisputed.

[4] The Court finds that Plaintiffs have failed to dispute that between 2013 and 2022, only one collision (on January 14, 2023) involved a vehicle making a southbound left turn.